RECALLING Article 28(b) of the Convention on the International Maritime Organization con
cerning the functions of the Committee, NOTING resolution MSC.385(94), by which it adopt
ed the safety -related provisions of the Introduction, and the whole of parts I-A and I-
B of the International Code for Ships Operating in Polar Waters ("the Polar Code"), whic
h became mandatory under chapter XIV of the International Convention for the Safety of L
ife at Sea, 1974 ("the Convention"), NOTING ALSO article VIII(b) and regulation XIV/1.1.
1 of the Convention concerning the procedure for amending the safety -related provisions
of the introduction and part I -A of the Polar Code, --- URL: https://wwwcdn.imo.org/loc
alresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107).pdf pro
cedure for amending the safety -related provisions of the introduction and part I -A of
the Polar Code, NOTING FURTHER regulation XIV/1.1.2 of the Convention concerning the pro
cedure for amending part I-B of the Polar Code, RECOGNIZING the need to introduce safety
measures for non-SOLAS ships operating in polar waters, HAVING CONSIDERED, at its 107th
session, amendments to the Polar Code proposed and circulated in accordance with article
VIII(b)(i) of the Convention, 1 ADOPTS, in accordance with article VIII(b)(iv) of the Co
nvention, amendments to part I-A of the Polar Code, the text of which is set out in anne
x 1 to the present resolution; 2 ALSO ADOPTS, in accordance with regulation XIV/1.1.2 of
the Convention, amendments to part I-B of the Polar Code, the text of which is set out i
n annex 2 to the present resolution; 3 DETERMINES, in accordance with article VIII(b)(vi
)(2)(bb) of the Convention, that the --- URL: https://wwwcdn.imo.org/localresources/en/K
nowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107).pdf resolution; 3 DETER
MINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the amendme
nts to part I -A of the Polar Code shall be deemed to have been accepted on 1 July 2025,
unless, prior to that date, more than one third of the Contracting Governments to the Co
nvention or Contracting Governments the combined merchant fleets of which constitute not
less than 50% of the gross tonnage of the world's merchant fleet have notified their obj
ections to the amendments; 4 INVITES Contracting Governments to the Convention to note t
hat, in accordance with article VIII(b)(vii)(2) of the Convention, said amendments shall
enter into force on 1 January 2026 upon their acceptance in accordance with paragraph 3
above; 5 ALSO INVITES Contracting Governments to the Convention to note that the amendme
nts to part I-B of the Polar Code will take effect on 1 January 2026 upon entry into for
ce of the amendments to part I-A of the Code set out in annex 1.

--- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/
MSCResolutions/MSC.538(107).pdf force of the amendments to part I-A of the Code set out
in annex 1.

6 REQUESTS the Secretary -General, for the purposes of article VIII(b)(v) of the Convent
ion, to transmit certified copies of the present resolution and the text of the amendmen
ts contained in the annexes to all Contracting Governments to the Convention; RESOLUTION
MSC.538(107) (adopted on 8 June 2023) AMENDMENTS TO THE INTERNATIONAL CODE FOR SHIPS OPE
RATING IN POLAR WATERS (POLAR CODE) - 2 - 7 ALSO REQUESTS the Secretary-General to trans
mit copies of this resolution and its annexes to Members of the Organization which are n
ot Contracting Governments to the Convention.

RESOLUTION MSC.538(107) (adopted on 8 June 2023) AMENDMENTS TO THE INTERNATIONAL CODE FO
R SHIPS OPERATING IN POLAR WATERS (POLAR CODE) 3 ANNEX 1 AMENDMENTS TO THE INTERNATIONAL
CODE FOR SHIPS OPERATING IN POLAR WATERS (POLAR CODE) Part I-A Safety measures Chapter 9
Safety of navigation --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/I
ndexofIMOResolutions/MSCResolutions/MSC.538(107).pdf SHIPS OPERATING IN POLAR WATERS (PO
LAR CODE) Part I-A Safety measures Chapter 9 Safety of navigation 1 The heading of chapt
er 9 is replaced by the following: "Chapter 9 Safety of navigation for ships certified i
n accordance with SOLAS chapter I" 2 The following text is inserted after the heading of
chapter 9: "This chapter applies to ships certified in accordance with SOLAS chapter I."
3 The following new chapter is inserted after existing chapter 9: "Chapter 9-1 Safety of
navigation for fishing vessels of 24 metres in length overall and above , pleasure yacht
s of 300 gross tonnage and upwards not engaged in trade and cargo ships of 300 gross ton
nage and upwards but below 500 gross tonnage This chapter applies to: .1 fishing vessels
of 24 metres in length overall and above; .2 pleasure yachts of 300 gross tonnage and up
wards not engaged in trade; and .3 cargo ships of 300 gross tonnage and upwards but belo
w 500 gross tonnage.

--- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/
MSCResolutions/MSC.538(107).pdf trade; and .3 cargo ships of 300 gross tonnage and upwar
ds but below 500 gross tonnage.

9-1.1 Goal The goal of this chapter is to provide for safe navigation.

9-1.2 Functional requirements In order to achieve the goal set out in paragraph 9-1.1 ab
ove, the following functional requirements are embodied in the regulations of this chapt
er.

9-1.2.1 Nautical information Ships shall have the ability to receive up-to-date informat
ion including ice information for safe navigation.

RESOLUTION MSC.538(107) (adopted on 8 June 2023) AMENDMENTS TO THE INTERNATIONAL CODE FO
R SHIPS OPERATING IN POLAR WATERS (POLAR CODE) 4 9-1.2.2 Navigational equipment function
ality .1 The navigational equipment and systems shall be designed, constructed and insta
lled to retain their functionality under the expected environmental conditions in the ar
ea of operation.

.2 Systems for providing reference headings and position fixing shall --- URL: https://w
wwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC
.538(107).pdf expected environmental conditions in the area of operation.

.2 Systems for providing reference headings and position fixing shall be suitable for th
e intended areas.

9-1.2.3 Additional navigational equipment Ships shall have the ability to visually detec
t ice when operating in darkness.

9-1.3 Regulations 9-1.3.1 Nautical information In order to comply with the functional re
quirement of paragraph 9-1.2.1 above, ships shall have means of receiving and displaying
current information on ice conditions in the area of operation.

9-1.3.2 Navigational equipment functionality 9-1.3.2.1 In order to comply with the funct
ional requirement of paragraph 9-1.2.2.1 above, the following applies: .1 ice-strengthen
ed ships constructed on or after 1 January 2026 shall have either two independent echo -
sounding devices or one echo-sounding device with two separate independent transducers.

Other devices capable of depth sounding, such as fish finders, --- URL: https://wwwcdn.i
mo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(10
7).pdf echo-sounding device with two separate independent transducers.

Other devices capable of depth sounding, such as fish finders, acceptable to the Adminis
tration, may be used as equivalent means of meeting this requirement; .2 ships shall com
ply with SOLAS regulation V/22.1.9.4, irrespective of the date of construction and the s
ize, and have a clear view astern.

On ships which cannot comply with these requirements, arrangements acceptable to the Adm
inistration shall be provided to achieve a level of visibility that is equivalent to the
se requirements; .3 for ships operating in areas, and during periods, where ice accretio
n is likely to occur, means to prevent the accumulation of ice on antennas required for
navigation and communication shall be provided; and .4 in addition, for ice-strengthened
ships, the following applies: .1 where equipment required by SOLAS chapter V or this cha
pter have sensors that project below the hull, such --- URL: https://wwwcdn.imo.org/loca
lresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107).pdf .1 w
here equipment required by SOLAS chapter V or this chapter have sensors that project bel
ow the hull, such sensors shall be protected against ice; and .2 in category A and B shi
ps constructed on or after 1 January 2026, the bridge wings shall be enclosed or designe
d to protect navigational equipment and operating personnel.

On ships which cannot comply with this regulation, arrangements acceptable to the Admini
stration shall be provided to achieve a level of protection that is equivalent to this r
egulation.

RESOLUTION MSC.538(107) (adopted on 8 June 2023) AMENDMENTS TO THE INTERNATIONAL CODE FO
R SHIPS OPERATING IN POLAR WATERS (POLAR CODE) 5 9-1.3.2.2 In order to comply with the f
unctional requirement of paragraph 9-1.2.2.2 above, the following applies: .1 ships of 5
00 gross tonnage and upwards shall have two non-magnetic means to determine and display
their heading.

Both means shall be independent and shall be connected to the --- URL: https://wwwcdn.im
o.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107
).pdf non-magnetic means to determine and display their heading.

Both means shall be independent and shall be connected to the ship's main and emergency
source of power; and .2 ships proceeding to latitudes over 80 degrees shall be fitted wi
th at least one GNSS compass or equivalent, which shall be connected to the ship's main
and emergency source of power.

9-1.3.3 Additional navigational equipment In order to comply with the functional require ment of paragraph 9 -1.2.3, ships, with the exception of those solely operating in areas with 24 hours daylight, shall be equipped with two means of illumination to aid visual d etection of ice." Chapter 11 Voyage planning 4 The heading of chapter 11 is replaced by the following: "Chapter 11 Voyage planning for ships certified in accordance with chapte r I" 5 The following text is inserted after the heading of chapter 11: "This chapter app lies to ships certified in accordance with SOLAS chapter I." --- URL: https://wwwcdn.imo .org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107) .pdf 5 The following text is inserted after the heading of chapter 11: "This chapter app lies to ships certified in accordance with SOLAS chapter I." 6 The following new chapter is inserted after existing chapter 11: "Chapter 11-1 Voyage planning for fishing vessels of 24 metres in length overall and above, pleasure yachts of 300 gross tonnage and upwar ds not engaged in trade and cargo ships of 300 gross tonnage and upwards but below 500 g ross tonnage This chapter applies to the following ships operating in polar waters: .1 f ishing vessels of 24 metres in length overall and above; .2 pleasure yachts of 300 gross tonnage and upwards not engaged in trade; and .3 cargo ships of 300 gross tonnage and up wards but below 500 gross tonnage.

11-1.1 Goal The goal of this chapter is to ensure that the company, master and crew are provided with sufficient information to enable operations to be conducted with due --- U RL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCRe solutions/MSC.538(107).pdf with sufficient information to enable operations to be conduc ted with due consideration to safety of ship and persons on board and, as appropriate, e nvironmental protection.

RESOLUTION MSC.538(107) (adopted on 8 June 2023) AMENDMENTS TO THE INTERNATIONAL CODE FO R SHIPS OPERATING IN POLAR WATERS (POLAR CODE) 6 11-1.2 Functional requirement In order to achieve the goal set out in paragraph 11-1.1 above, the voyage plan shall take into a ccount the potential hazards of the intended voyage.

11-1.3 Requirements In order to comply with the functional requirement of paragraph 11 - 1.2 above, the master shall consider a route through polar waters, taking into account t he following: .1 the procedures required by the safety management system on board; if no safety management system is implemented there shall be a documented procedure for operat ion in polar waters; .2 any limitations of the hydrographic information and aids to navi gation available; --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/Inde xofIMOResolutions/MSCResolutions/MSC.538(107).pdf be a documented procedure for operatio n in polar waters; .2 any limitations of the hydrographic information and aids to naviga tion available; .3 current information on the extent and type of ice and icebergs in the vicinity of the intended route; .4 statistical information on ice and temperatures from former years; .5 places of refuge; .6 current information and measures to be taken when marine mammals are encountered relating to known areas with densities of marine mammals, including seasonal migration areas; .7 current information on relevant ships' routeing s ystems, speed recommendations and vessel traffic services relating to known areas with d ensities of marine mammals, including seasonal migration areas; .8 national and internat ional designated protected areas along the route; and .9 operation in areas remote from search and rescue (SAR) capabilities." RESOLUTION MSC.538(107) (adopted on 8 June 2023) --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/ MSCResolutions/MSC.538(107).pdf route; and .9 operation in areas remote from search and rescue (SAR) capabilities." RESOLUTION MSC.538(107) (adopted on 8 June 2023) AMENDMENTS TO THE INTERNATIONAL CODE FOR SHIPS OPERATING IN POLAR WATERS (POLAR CODE) 7 ANNEX 2 AME NDMENTS TO THE INTERNATIONAL CODE FOR SHIPS OPERATING IN POLAR WATERS (POLAR CODE) Part I-B Additional guidance regarding the provisions of the Introduction and Part I-A 10 Add itional guidance to chapter 9 (Safety of navigation) 7 The heading of section 10 is repl aced by the following: "10 Additional guidance to chapters 9 and 9-1" 12 Additional guid ance to chapter 11 (Voyage planning) 8 The heading of section 12 is replaced by the foll owing: "12 Additional guidance to chapters 11 and 11-1" RESOLUTION MSC.538(107) (adopted on 8 June 2023) AMENDMENTS TO THE INTERNATIONAL CODE FOR SHIPS OPERATING IN POLAR WATERS (POLAR CODE) RESOLUTION MSC.538(107) (adopted on 8 June 2023) --- URL: https://wwwcdn.im o.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107).pdf AMENDMENTS TO THE INTERNATIONAL CODE FOR SHIPS OPERATING IN POLAR WATERS (POLAR CO DE) RESOLUTION MSC.538(107) (adopted on 8 June 2023) AMENDMENTS TO THE INTERNATIONAL COD E FOR SHIPS OPERATING IN POLAR WATERS (POLAR CODE) --- URL: https://wwwcdn.imo.org/local resources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107).pdf RESOL UTION MSC.538(107) (adopted on 8 June 2023) AMENDMENTS TO THE INTERNATIONAL CODE FOR SHI PS OPERATING IN POLAR WATERS (POLAR CODE) RESOLUTION MSC.538(107) (adopted on 8 June 202

3) AMENDMENTS TO THE INTERNATIONAL CODE FOR SHIPS OPERATING IN POLAR WATERS (POLAR CODE)
THE MARITIME SAFETY COMMITTEE, RECALLING Article 28(b) of the Convention on the Internat
ional Maritime Organization concerning the functions of the Committee, NOTING resolution
MSC.385(94), by which it adopted the safety -related provisions of the Introduction, and
the whole of parts I-A and I-B of the International Code for Ships Operating in Polar Wa
ters ("the Polar Code"), which became mandatory under chapter XIV of the International C
onvention for the Safety of Li